



INDUSTRIAL USER PERMIT

TRANSMITTAL LETTER

RETURN OF DOCUMENT RECEIPT FORM IS REQUIRED

Mr. John Hughes
Department of Veterans Affairs Medical Center
VA Boston Healthcare System
940 Belmont Street
Brockton, MA 02301

RE: Issuance of Industrial User Permit to VA Boston Healthcare System by the City of Brockton
Publicly Owned Treatment Works.

Permit No. N-940-020529

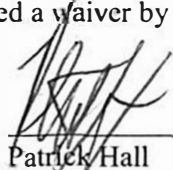
Dear Mr. Hughes:

Your request for an industrial user pretreatment permit renewal has been reviewed and processed in accordance with **Section 23.85** of the City of Brockton Sewer Use Ordinance.

The enclosed **Permit # N-940-020529** covers the wastewater discharged from the facility located at **940 Belmont Street, Brockton, MA** into the City of Brockton sewer system. All discharges from this facility and actions and reports relating thereto shall be in accordance with the terms and conditions of this permit.

If you wish to appeal or challenge any conditions imposed in this permit, a petition shall be filed for modification or reissuance of this permit in accordance with the requirements of **Section 23-87** of the Sewer Use Ordinance, within 30 days of your receipt of this correspondence. Pursuant to **Section 23-90** of the Sewer Use Ordinance, failure to petition for reconsideration of the permit within the allotted time is deemed a waiver by the permittee of his right to challenge the terms of this permit.

By:


Patrick Hall
DPW Commissioner


David LaRiviere
Project Manager

VEOLIA
Brockton Advanced Water Reclamation Facility
303 Oak Hill Way
Brockton, MA 02301
Tel 508-580-7885



"City of Champions"
Department of Public Works

INDUSTRIAL USER PERMIT

N-940-020529

In accordance with the provisions of **Section 23.84** of the Sewer Use Ordinance

Mr. John Hughes
Department of Veterans Affairs Medical Center
VA Boston Healthcare System
940 Belmont Street
Brockton, MA 02301

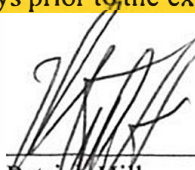
is hereby authorized to discharge industrial wastewater from the above identified facility and through the outfall identified herein into the **City of Brockton** sewer system in accordance with the conditions set forth in this permit. Compliance with this permit does not relieve the permittee of its obligation to comply with any or all applicable pretreatment regulations, standards or requirements under local, State, and Federal laws, including any such regulations, standards, requirements, or laws that may become effective during the term of this permit.

Noncompliance with any term or condition of this permit shall constitute a violation of the City of Brockton Sewer Use Ordinance.

This permit shall become effective on February 5th, 2026 and shall expire at midnight on February 5th, 2029

If the permittee wishes to continue to discharge after the expiration date of this permit, an application must be filed for a renewal permit in accordance with the requirements of **Section 23-84**, a **minimum of 90 days prior to the expiration date.**

By:


Patrick Hill

DPW Commissioner


David LaRiviere

Project Manager

PART 1 - EFFLUENT LIMITATIONS

- A. During the period of **February 5th, 2026 to February 5th, 2029** the permittee is authorized to discharge industrial wastewater to the **City of Brockton** sewer system from the outfall listed below.

<u>Outfall</u>	<u>Description</u>
FAC	Sewer manhole just inside the gate at the West Chestnut entrance

- B. During the period of **February 5th, 2026 to February 5th, 2029** the discharge from outfall FAC shall not exceed the following effluent limitations. The effluent from this outfall consists of wastewater generated from the commercial laundry services.

Outfall FAC

<u>Parameter</u>	<u>Local Limits (mg/L)</u>
Copper	0.64
Lead	1.24
Silver	1.59
Zinc	4.05
Cyanide	1.00
FOG	100

- C. Any wastewater having a pH lower than 6.0 or higher than 11.0 is prohibited.
- D. All discharges shall comply with all other applicable laws, regulations, standards, and requirements contained in **Sections 23-70 through 23-109** of the Sewer Use Ordinance and any applicable State and Federal pretreatment laws, regulations, standards, and requirements including any such laws, regulations, standards, or requirements that may become effective during the term of this permit.

PART 2 - MONITORING REQUIREMENTS

- A. From the period beginning on **February 5th, 2026 to February 5th, 2029** the permittee shall monitor outfall **FAC** for the following parameters, at the indicated frequency:

<u>Parameter</u>	<u>Daily Max(mg/L)</u>	<u>Frequency</u>	<u>Sample Type</u>
Flow	Report	Daily	Meter ¹
pH	6.0 – 11.0	Quarterly	Grab ²
Copper	0.64	Quarterly	Composite
Lead	1.24	Quarterly	Composite
Silver	1.59	Quarterly	Composite
Zinc	4.05	Quarterly	Composite
FOG	100	Quarterly	Grab
Phosphorus(T)	Report Only	Quarterly	Composite
(T) = Total			

1. An average daily flow value, for the reporting period, based on incoming water meter readings, must be submitted with each report.
 2. The pH measurement will be done during the sampling collection period and noted on the chain of custody as a field measurement.
 3. The samples are to be taken from the sewer manhole just inside the gate at the West Chestnut Street Entrance when the laundry service is operational.
- B. All handling and preservation of collected samples and laboratory analyses of samples shall be performed in accordance with 40 CFR Part 136 and amendments thereto unless specified otherwise in the monitoring conditions of this permit.
- C. Although monitoring for all of the pollutants that are specified as local limits in the City of Brockton Sewer Use Ordinance is not requested at this time, compliance with all local limitations must be maintained.

PART 3 - REPORTING REQUIREMENTS

A. Monitoring Reports

Monitoring results obtained shall be summarized and reported on an Industrial User Self-Monitoring Report Form quarterly. No later than the fifteenth day of the following month, the permittee shall provide to the City of Brockton the self-monitoring report for the previous quarterly period. For example, the self-monitoring report for the January 1 to March 31st period is due by April 15th. The report shall indicate the nature and concentration of all pollutants in the effluent for which sampling and analyses were performed during the reporting period, including measured maximum and average daily flows. A completed chain of custody form shall be submitted with analytical data. The report shall include copies of the following Best Management Practices

1. Grease trap maintenance log
 2. Receipts for grease removal
 3. Manifests for removal of biohazardous waste
 4. Manifests for removal of hazardous waste
 5. Documentation of grease BMP training
 6. Documentation of hazardous waste accumulation and disposal training
 7. Certification of mercury free facility
 8. Certification of silver free facility
- B. If the permittee monitors any pollutant more frequently than required by this permit, using test procedures prescribed in 40 CFR Part 136 or amendments thereto, or otherwise approved by EPA or as specified in this permit, the results of such monitoring shall be included in any calculations of actual daily maximum or monthly average pollutant discharge and results shall be reported in the quarterly report submitted to the **City of Brockton**. Such increased monitoring frequency shall also be indicated in the quarterly report.

C. Automatic Resampling

If the results of the permittee's wastewater analysis indicate that a violation of this permit has

occurred, the permittee must:

1. Inform the **City of Brockton** of the violation within 24 hours; and
2. Repeat the sampling and pollutant analysis within 30 days of the violation and submit, in writing, the results of this second analysis within 30 days of the sample date. This sampling is in addition to and not in place of, self-monitoring requirements as written in this permit.

D. Accidental Discharge Report

1. The permittee shall notify the **City of Brockton** immediately upon the occurrence of an accidental discharge of substances prohibited by **Section 23-71** of the Sewer Use Ordinance or any slug loads or spills that may enter the public sewer. The permittee shall notify the ranking employee on duty at the **City of Brockton Wastewater Treatment Plant at 508-580-7885, the Commissioner of Public Works at 508-580-7135** and the **MA DEP at 508-946-2700**. In the event of a potentially dangerous spill or slug to the sewer system, the City of Brockton Police Department shall be notified. The notification shall include location of discharge, date and time thereof, type of waste, including concentration and volume, and corrective actions taken. The permittee's notification of accidental releases in accordance with this section does not relieve it of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, fish kills, or any other damage to person or property; or shall such notification relieve the permittee of any fines, civil penalties, or other liability which may be imposed by this section or other applicable law.

Within five days following an accidental discharge, the permittee shall submit to the City of Brockton a detailed written report. The report shall specify:

- a. Description and cause of the upset, slug load or accidental discharge, the cause thereof, and the impact on the permittee's compliance status. The description should also include the location of discharge, type, concentration and volume of waste.
 - b. Duration of noncompliance, including exact dates and times of noncompliance and, if the noncompliance is continuing, the time by which compliance is reasonably expected to occur.
 - c. All steps taken or to be taken to reduce, eliminate, and/or prevent recurrence of such an upset, slug load, accidental discharge, or other conditions of noncompliance.
2. A notice shall be permanently posted on the permittee's bulletin board or other prominent place advising employees whom to call in the event of a dangerous discharge. Employers shall ensure that all employees who may cause or suffer such a dangerous discharge to occur are advised of the emergency notification procedure.

- E. All reports and notifications required by this permit to be submitted to the **City of Brockton** shall be sent to the following address:

**Pretreatment Coordinator
Veolia Water North America
Brockton Wastewater Treatment Plant
303 Oak Hill Way
Brockton, MA 02301**

- F. In accordance with title 40 of the Code of Federal Regulations Part 403 Section 403.14, information and data provided by the permittee which identifies the nature and frequency of discharge shall be available to the public without restriction. Requests for confidential treatment of other information shall be governed by the procedures specified in 40 CFR Part 2.

PART 4 - SPECIAL CONDITIONS

A. Additional/Special Monitoring Requirements

Best Management Practices are required for any grease interceptor located at the facility. Regular cleaning is necessary in order to maintain proper operating efficiency. Solids that collect in the interceptor through settling should also be removed at the same time as the grease removal.

A log sheet, which details the maintenance activities associated with the interceptor must be kept on site. This log must be updated each time that the unit is cleaned/serviced and must be made available for viewing by the City at all times. The log must document the time, date (month, day, year), and name of the individual conducting the maintenance activity.

B. Reopener Clause

See Section A (4) in the Standard Conditions below

C. Slug Control Plan

In accordance with 40 CFR 403.8 (f)(2)(v) the POTW must evaluate the need for a slug control plan at least one time.

PART 5 -STANDARD CONDITIONS FOR PERMITS

A. General Conditions and Definitions

1. Severability

The provisions of this permit are severable, and if any provision of this permit, or the application of any provision of this permit to any circumstances, is held invalid, the application of such provision to other circumstances, and the remainder of this permit, shall not be affected thereby.

2. Duty to Comply

The permittee must comply with all conditions of this permit. Failure to comply with the requirements of this permit may be grounds for administrative action, or enforcement proceedings, including civil or criminal penalties, injunctive relief, and summary abatements.

3. Duty to Mitigate

The permittee shall take all reasonable steps to minimize or correct any adverse impact to the public treatment plant or the environment resulting from noncompliance with this permit, including such accelerated or additional monitoring as necessary to determine the nature and impact of the non complying discharge.

4. Permit Modification

This permit may be modified for good causes including, but not limited to, the following:

- a. To incorporate any new or revised Federal, State, or local pretreatment standards or requirements
- b. Material or substantial alterations or additions to the discharger's operation processes, or discharge volume or character which were not considered in drafting the effective permit
- c. A change in any condition in either the industrial user or the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge
- d. Information indicating that the permitted discharge poses a threat to the Control Authority's collection and treatment systems, POTW personnel or the receiving waters
- e. Violation of any terms or conditions of the permit
- f. Misrepresentation or failure to disclose fully all relevant facts in the permit application or in any required reporting
- g. Revision of or a grant of variance from such categorical standards pursuant to 40 CFR 403.13; or
- h. To correct typographical or other errors in the permit
- i. To reflect transfer of the facility ownership and/or operation to a new owner/operator
- j. Upon request of the permittee, provided such request does not create a violation of any applicable requirements, standards, laws, or rules and regulations.

The filing of a request by the permittee for a permit modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any permit condition.

5. Permit Termination

This permit may be terminated for, but not limited to, the following reasons:

- a. Falsifying self-monitoring reports
- b. Tampering with monitoring equipment
- c. Refusing to allow timely access to the facility premises and records
- d. Failure to meet effluent limitations
- e. Failure to pay fines
- f. Failure to pay sewer charges
- g. Failure to meet compliance schedules.

6. Permit Appeals

The permittee may petition to appeal the terms of this permit within thirty (30) days of the notice.

This petition must be in writing; failure to submit a petition for review shall be deemed to be a waiver of the appeal. In its petition, the permittee must indicate the permit provisions objected to, the reasons for this objection, and the alternative condition, if any, it seeks to be placed in the permit.

The effectiveness of this permit shall not be stayed pending reconsideration by the City. The City's decision not to reconsider a final permit shall be considered final administrative action for purposes of judicial review. The permittee seeking judicial review of the City's final action must do so by filing a complaint with the Brockton Superior Court within sixty (60) days of the City's decision.

7. Property Rights

The issuance of this permit does not convey any property rights of any sort, or any exclusive privileges, nor does it authorize any injury to private property or any invasion of personal rights, nor any violation of Federal, State, or local laws or regulations.

8. Limitation on Permit Transfer

Permits are not to be transferred, however the permit may be reassigned to a new owner and/or operator with prior approval of the DPW Commissioner:

- a. The permittee must give at least thirty (30) days advance notice to the DPW Commissioner.
- b. The notice must include a written certification by the new owner which:
 - (i) States that the new owner has no immediate intent to change the facility's operations and processes
 - (ii) Identifies the specific date on which the transfer is to occur
 - (iii) Acknowledges full responsibility for complying with the existing permit.

9. Duty to Reapply

If the permittee wishes to continue an activity regulated by this permit after the expiration date of this permit, the permittee must submit an application for a new permit at least 90 days before the expiration date of this permit unless other special conditions apply.

10. Continuation of Expired Permits

An expired permit will continue to be effective and enforceable until the permit is reissued if:

- a The permittee has submitted a complete permit application at least ninety (90) days prior to the expiration date of the user's existing permit.
- b The failure to reissue the permit, prior to expiration of the previous permit, is not due to any act or failure to act on the part of the permittee.

11. Dilution

The permittee shall not increase the use of potable or process water or, in any way, attempt to dilute an effluent as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in this permit.

12. Definitions

a. Daily Maximum

The maximum allowable discharge of pollutant during a calendar day. Where daily maximum limitations are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where daily maximum limitations are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

b. Composite Sample

A sample that is collected over time, formed either by continuous sampling or by mixing discrete samples. The sample shall be composited as a flow proportional composite sample; collected either as a constant sample volume at time intervals proportional to stream flow, or collected by increasing the volume of each aliquot as the flow increases while maintaining a constant time interval between the aliquots.

c. Grab Sample

An individual sample collected in less than 15 minutes, without regard for flow or time.

d. Instantaneous Maximum Concentration

The maximum concentration allowed in any single grab sample.

e. Cooling Water

- (i) Uncontaminated: Water used for cooling purposes only which has no direct contact with any raw material, intermediate, or final product and which does not contain a level of contaminants detectable higher than that of the intake water.
- (ii) Contaminated: Water used for cooling purposes only which may become contaminated either through the use of water treatment chemicals used for corrosion inhibitors or biocides, or by direct contact with process materials and/or wastewater.

f. Monthly Average

The arithmetic mean of the values for effluent samples collected during a calendar month or specified 30 day period (as opposed to a rolling 30 day window).

g. Weekly Average

The arithmetic mean of the values for effluent samples collected over a period of seven consecutive days.

h. BiWeekly

Once every other week.

i. BiMonthly

Once every other month.

j. Upset

Means an exceptional incident in which there is unintentional and temporary noncompliance with technology-based permit effluent limitations because of factors beyond the reasonable control of the permittee, excluding such factors as operational error, improperly designed or inadequate treatment facilities, or improper operation and maintenance or lack thereof.

k. Bypass

Means the intentional diversion of wastes from any portion of a treatment facility.

13. General Prohibitive Standards

The permittee shall comply with all the general prohibitive discharge standards in the Sewer Use Ordinance. Namely, the industrial user shall not discharge wastewater to the sewer system:

- a. Ground, storm and surface waters, roof runoff, subsurface drainage, uncontaminated cooling water and uncontaminated industrial process waters. These discharges shall be made only to such sewers as are specifically designated by the commissioner as storm sewers, or to a natural outlet, as may be permitted under an applicable NPDES permit.
- b. Any liquids, solids or gases which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to create a fire or explosion hazard or be injurious in any other way to the facility or to the operation of the facility.

Pollutants which create a fire or explosion hazard include, but are not limited to, wastestreams with a closed-cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees centigrade using the test methods specified in 40 C.F.R. section 261.21. Prohibited materials include, but are not limited to, gasoline, kerosene, naphtha, benzene, fuel oil, crude oil, lubricating oils, any other oils or greases of hydrocarbon or petroleum origin, toluene, xylene, ethers, alcohols, ketones, aldehydes peroxides, chlorates, perchlorates, bromates, carbides, hydrides and sulfides, and any other substances which the commissioner, the division, or EPA has notified the person is a fire hazard or a hazard to the system.

- c. Solid or viscous substances in quantities or of such size capable of causing obstruction to the flow in sewers or other interference with the proper operation of the facility such as, but not limited to: grease, garbage with particles greater than one-half ($\frac{1}{2}$) inch in any dimension, animal guts or tissues, paunch, manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, spent grains, spent hops, waste paper, wood, plastics, rubber, tar, asphalt residues, residues from refining or processing of fuel or lubricating oil, mud or glass grinding or polishing wastes.
- d. Any wastewater having a pH lower than 6.0 or higher than 11.0, or wastewater having any other corrosive property capable of causing damage or hazard to structures, equipment, and/or personnel of the facility.
- e. Any wastewater containing toxic or objectionable pollutants in sufficient quantity or concentration, either singly or by interaction with other pollutants, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals, create a toxic effect in the receiving waters of the facility, or exceed the limitations set forth in a national categorical pretreatment standard, the local discharge limitations, or an industrial discharge permit issued pursuant to this article. A toxic pollutant shall include, but not be limited to, any pollutant identified pursuant to section 307(a) of the act listed at 40 C.F.R. Part 403, App. B.
- f. Any substances which result in the presence of toxic gases, vapors or fumes within the facility in a quantity that may cause acute worker health and safety problems.
- g. Any substance which may cause the facility's effluent or any other product of the facility such as residues, sludges, or scums, to be unsuitable for disposal in a permitted landfill or for reclamation and reuse, or to interfere with the reclamation and reuse, or to interfere with the reclamation process. In no case shall a substance discharge to the facility or cause the facility to be in noncompliance with sludge use or disposal criteria, guidelines, or regulations developed under section 405 of the act; or with any criteria, guidelines or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, or state criteria applicable to the sludge management method being used.
- h. All pollutants, including oxygen-demanding pollutants (BOD, etc.) released in a discharge at a flow rate and/or pollutant concentration which will cause interference to the facility.
- i. Any slug discharge, as defined at section 23-39 of the Sewer Ordinance
- j. Any wastewater with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions.
- k. Any wastewater having a temperature which will inhibit biological activity in the facility resulting in interference, but in no case wastewater with a temperature at the introduction into the facility which exceeds forty (40) degrees centigrade (one hundred four (104) degrees Fahrenheit).
- l. Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration may exceed limits necessary to comply with applicable state or federal

regulations.

- m. Any sludges or deposited solids resulting from an industrial pretreatment process.
- n. Petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.
- o. Any trucked or hauled pollutants, except at discharge points designated by the commissioner.
- p. Any water or waste containing fats, wax, grease or oils, whether emulsified or not, in excess of one hundred (100) milligrams per liter, or containing substances which may solidify or become viscous at temperatures between zero (0) degrees centigrade (thirty-two (32) degrees Fahrenheit) and sixty (60) degrees centigrade (one hundred forty (140) degrees Fahrenheit.)

14. Compliance with Applicable Pretreatment Standards and Requirements

Compliance with this permit does not relieve the permittee from its obligations regarding compliance with any and all applicable local, state and federal pretreatment standards and requirements including any such standards or requirements that may become effective during the term of this permit.

PART 6 - OPERATION AND MAINTENANCE OF POLLUTION CONTROLS

A. Proper Operation and Maintenance

The permittee shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the permittee to achieve compliance with the conditions of this permit. Proper operation and maintenance includes but is not limited to: effective performance, adequate funding, adequate operator staffing and training, and adequate laboratory and process backup controls, including appropriate quality assurance procedures. This provision requires the operation of or auxiliary facilities or similar systems only when necessary to achieve compliance with the conditions of the permit.

B. Duty to Halt or Reduce Activity

Upon reduction of efficiency of operation, or loss or failure of all or part of the treatment facility, the permittee shall, to the extent necessary to maintain compliance with its permit, control its production or discharges (or both) until operation of the treatment facility is restored or an alternative method of treatment is provided. This requirement applies, for example, when the primary source of power of the treatment facility fails or is reduced. It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit.

C. Bypass of Treatment Facilities

- 1. Bypass is prohibited.
- 2. The permittee may allow bypass to occur only with the authority and permission of the City.
- 3. Notification of bypass:
 - a. Anticipated bypass. If the permittee knows in advance of the need for a bypass, it shall

submit prior written notice, at least ten days before the date of the bypass, to the City of Brockton.

- b. Unauthorized bypass. The permittee shall immediately notify the City of Brockton Wastewater Treatment Plant and submit a written notice to the POTW within 5 days. This report shall specify:
- c. A description of the bypass, and its cause, including its duration; whether the bypass has been corrected; and the steps taken or to be taken to reduce, eliminate and prevent reoccurrence of the bypass

D. Removed Substances

All solids, sludges, filter backwash, or other pollutants removed in the course of treatment or control of wastewaters shall be disposed of in accordance with applicable federal and state laws and regulations including but not limited to, the State and Federal Acts, the Massachusetts Hazardous Waste Management Act, M.G.L. c. 21C, and the Federal Resource Conservation and Recovery Act, 42 U.S.C. s. 6901 et. seq. 310 CMR 19.00 and 30.00 and other applicable regulations.

PART 7- MONITORING AND RECORDS

A. Representative Sampling

Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge. All samples shall be taken at the monitoring points specified in this permit and, unless otherwise specified, before the effluent joins or is diluted by any other wastestream, body of water or substance. All equipment used for sampling and analysis must be routinely calibrated, inspected and maintained to ensure their accuracy. Monitoring points shall not be changed without notification to and the approval of the City of Brockton.

B. Flow Measurements

Flow measurement is required by this permit. The appropriate flow measurement devices and methods consistent with approved scientific practices shall be selected and used to ensure the accuracy and reliability of measurements of the volume of monitored discharges. The devices shall be installed, calibrated, and maintained to ensure that the accuracy of the measurements are consistent with the accepted capability of that type of device. Devices selected shall be capable of measuring flows with a maximum deviation of less than 10 percent from true discharge rates throughout the range of expected discharge volumes. At a minimum, meters must be calibrated annually.

C. Analytical Methods to Demonstrate Continued Compliance

All sampling and analysis required by this permit shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto, otherwise approved by EPA, or as specified in this permit.

D. Additional Monitoring by the Permittee

If the permittee monitors any pollutant more frequently than required by this permit, using test procedures identified in Section C.3, the results of this monitoring shall be included in the permittee's self-monitoring reports.

E. Inspection and Entry

The permittee shall allow the City of Brockton, or an authorized representative, upon the presentation of credentials and other documents as may be required by law, to:

1. Enter upon the permittee's premises where a regulated facility or activity is located or conducted, or where records must be kept under the conditions of this permit;
2. Have access to and copy any records that must be kept under the conditions of this permit;
3. Inspect any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this permit;
4. Sample or monitor, for the purposes of assuring permit compliance, any substances or parameters at any location; and
5. Inspect any production, manufacturing, fabricating, or storage area where pollutants, regulated under the permit, could originate, be stored, or be discharged to the sewer system.

F. Retention of Records

1. The permittee shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this permit, and records of all data used to complete the application for this permit, for a period of at least three years from the date of the sample, measurement, report or application. This period may be extended by request of the City of Brockton at any time.
2. All records that pertain to matters that are the subject of special orders or any other enforcement or litigation activities brought by the City of Brockton shall be retained and preserved by the permittee until all enforcement activities have concluded and all periods of limitation with respect to any and all appeals have expired.

G. Record Contents

Records of sampling and analyses shall include:

1. The date, exact place, time, and methods of sampling or measurements, and sample preservation techniques or procedures;
2. Who performed the sampling or measurements;
3. The date(s) analyses were performed;
4. Who performed the analyses;

5. The analytical techniques or methods used; and
6. The results of such analyses.

H. Falsifying Information

Knowingly making any false statement on any report or other document required by this permit or knowingly rendering any monitoring device or method inaccurate, is a crime and may result in the imposition of criminal sanctions and/or civil penalties.

PART 8- ADDITIONAL REPORTING REQUIREMENTS

A. Planned Changes

The permittee shall give notice to the City of Brockton, 90 days prior to any facility expansion, production increase, or process modifications which results in new or substantially increased discharges or a change in the nature of the discharge.

B. Anticipated Noncompliance

The permittee shall give advance notice to the City of Brockton of any planned changes in the permitted facility or activity which may result in noncompliance with permit requirements.

C. Automatic Resampling

If the results of the permittee's wastewater analysis indicates a violation has occurred, the permittee must notify the City of Brockton within 24 hours of becoming aware of the violation and repeat the sampling and pollutant analysis and submit, in writing, the results of this repeat analysis within 30 days after becoming aware of the violation.

D. Duty to Provide Information

The permittee shall furnish to the City of Brockton, within three (3) days any information which the City of Brockton may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this permit, or to determine compliance with this permit. The permittee shall also, upon request, furnish to the City of Brockton within three (3) days, copies of any records required to be kept by this permit.

E. Signatory Requirements

All applications, reports, or information submitted to the City of Brockton must contain the following certification statement and be signed as required in Sections (a), (b), (c) or (d) below:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly

responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

- a) By a responsible corporate officer, if the Industrial User submitting the reports is a corporation. For the purpose of this paragraph, a responsible corporate officer means:
 - (i) a president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation, or;
 - (ii) the manager of one or more manufacturing, production, or operation facilities employing more than 250 persons or having gross annual sales or expenditures exceeding \$25 million (in second-quarter 1980 dollars), if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.
- b) By a general partner or proprietor if the Industrial User submitting the reports is a partnership or sole proprietorship respectively.
- c) The principal executive officer or director having responsibility for the overall operation of the discharging facility if the Industrial User submitting the reports is a Federal, State, or local governmental entity, or their agents.
- d) By a duly authorized representative of the individual designated in paragraph (a), (b), or (c) of this section if:
 - (i) the authorization is made in writing by the individual described in paragraph (a), (b), or (c);
 - (ii) the authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the Industrial Discharge originates, such as the position of plant manager, operator of a well, or a well field superintendent, or a position of equivalent responsibility, or having overall responsibility for the pretreatment program for the company; and
 - (iii) the written authorization is submitted to the City.
- e) If an authorization under paragraph (d) of this section is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for the pretreatment program for the company, a new authorization satisfying the requirements of paragraph (d) of this section must be submitted to the City prior to or together with any reports to be signed by an authorized representative.

F. Operating Upsets

Any permittee that experiences an upset in operations that places the permittee in a temporary state of

noncompliance with the provisions of either this permit or with the Sewer Use Ordinance shall inform the City of Brockton Wastewater Treatment Plant immediately of becoming aware of the upset at 508-580-7885.

A written followup report of the upset shall be filed by the permittee with the City of Brockton within five days. The report shall specify:

1. Description of the upset, the cause(s) thereof and the upset's impact on the permittee's compliance status;
2. Duration of noncompliance, including exact dates and times of noncompliance, and if not corrected, the anticipated time the noncompliance is expected to continue; and
3. All steps taken or to be taken to reduce, eliminate and prevent recurrence of such an upset.

G. Annual Publication

A list of all industrial users which were in Significant Noncompliance during the twelve (12) previous months shall be annually published by the City of Brockton in any newspaper of general circulation within the jurisdiction that provides meaningful public notice within the jurisdiction served by the POTW as cited in Federal Regulation 40 CFR 403.8(f)(2)(viii). Accordingly, the permittee is apprised that noncompliance with this permit may lead to an enforcement action and may result in publication of its name in an appropriate newspaper in accordance with this section.

H. Significant Non-Compliance

In accordance with the United States Environmental Protection Agency regulations, 40 CFR 403.8 (f)(2)(vii) and the City of Brockton Sewer Use Ordinance, the City is required to publish annually, at a minimum, a list of all companies that are or have been in significant noncompliance (SNC) with federal, state, or local wastewater discharge pretreatment standards or other pretreatment requirements during a twelve (12) month period. An industrial user is determined to be in SNC if it meets one or more of the following criteria:

- a) Chronic violations of wastewater discharge limits, defined as those in which sixty-six percent of more of all of the measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter;
- b) Technical Review Criteria (TRC) violations, defined as those in which thirty-three percent or more of all of the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats oil, and grease, and 1.2 for all other pollutants except pH);
- c) Any other violation of a pretreatment effluent limit (daily maximum or longer-term average) that the Control Authority determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public);
- d) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under paragraph 403.8 (f)(1)(vi)(B) to halt or prevent such a discharge;

- c) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;
- f) Failure to provide, within 45 days after the due date, required reports such as baseline monitoring reports, 90 day compliance reports, periodic self-monitoring reports and reports on compliance with compliance schedules;
- g) Failure to accurately report noncompliance;
- h) Any other violation or group of violations which the Control Authority determines will adversely affect the operation or implementation of the local pretreatment program.

As directed by the EPA, SNC is calculated using a system of rolling quarters. Each six-month period is made up of two quarters that are evaluated. Data evaluation begins with the last quarter of the previous year. Data is reviewed to determine if 66% or more of the data for any single parameter exceeds the limit or 33% or more exceeds the TRC limit. The data is evaluated for the periods of October 1 – March 31; January 1 – June 30; April 1 - September 30; and July 1 – December 31. Each six-month period is reviewed independently to determine SNC. An industrial user (IU) cannot be published in SNC for the same parameter twice. If the IU was published for violations that occurred during the last quarter of the April – June period, then the IU could not be determined to be in SNC for those same violations in the next pretreatment year.

I. Civil and Criminal Liability

Nothing in this permit shall be construed to relieve the permittee from civil and/or criminal penalties for noncompliance under Section 23-104 of the Sewer Use Ordinance or State or Federal laws or regulations.

J. Penalties for Violations of Permit Conditions

State Law provides that any person who violates a permit condition may be subject to a civil penalty of at least five thousand (5000) dollars per day per violation. Any person who willfully or negligently violates permit conditions is subject to criminal penalties of a fine of up to five thousand (5000) per day of violation, or by imprisonment, or both. The permittee may also be subject to other sanctions under State and/or Federal law. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense.

K. Recovery of Costs Incurred

In addition to civil and criminal liability, the permittee violating any of the provisions of this permit or Sewer Use Ordinance or causing damage to or otherwise inhibiting the City of Brockton wastewater disposal system shall be liable to the City of Brockton for any expense, loss, or damage caused by such violation or discharge. The City of Brockton shall bill the permittee for the costs incurred by the City of Brockton for any cleaning, repair, or replacement work caused by the violation or discharge. Refusal to pay the assessed costs may subject the permittee to Judicial Enforcement and Civil Penalties.